

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

**2026PRCE062029: IN THE MATTER OF LOIS E WRIGHT
07/31/2026 in Department J6
Hearing on Petition for Appointment of Conservator of the Person and Estate**

This was heard on 07/10/26. The court ordered the following: The Court finds that Lois Wright lacks capacity. Attorney Christiansen shall file an opposition.

Capacity Declaration: Filed 07/23/26. The Capacity Declaration states the proposed conservatee has capacity to make medical decisions.

Lois E. Wright opposes the petition. Ms. Wright states Petitioner has failed to establish that a conservatorship is least restrictive alternative required under California law.

Petitioner himself has not considered supported decision making because of the tensions between family members and potential for undue influence over proposed Conservatee.

This is not the standard. The standard is Probate Code section 1800.3(b), which provides:

“A conservatorship of the person or of the estate shall not be granted by the court unless the court makes an express finding that the granting of the conservatorship is the least restrictive alternative needed for the protection of the conservatee.”

Further, the standard of proof for the appointment of a conservator is clear and convincing evidence. (Probate Code §1801(c))

At this point, there is not clear and convincing evidence that the conservatee is unable to provide properly for her personal needs for physical health, food, clothing, or shelter. Petitioner has made allegations but there is no evidence that proposed conservatee is substantially unable to manage her own financial resources or resist fraud or undue influence.

Conservatee has capacity to give informed consent as to medical decisions, and has demonstrated that she, with support, can manage her financial affairs.

The court intends to deny the petition for conservatorship.

The clerk shall give notice.